

Stereo. HCJDA 38.
Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
(JUDICIAL DEPARTMENT)

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Civil Revision No. 8312 of 2026

Mudassar Aslam and others.

Versus

Awais Hussain and others.

JUDGMENT

Date of hearing	20.02.2026
For petitioners	M/s Syed Tassadaq Mustafa Naqvi, Syed Tassadaq Murtaza Naqvi and Barrister Naqsh Fatima Naqvi, Advocates.
For the Respondents	Nemo.

ASIM HAFEEZ, J. Order dated 20.12.2025 of Additional District Judge Gujranwala is assailed, in terms whereof application preferred by the petitioner, under section 12(2) of the Code and impugning judgment and decree dated 13.02.2013 - [while judgment was passed in exercise of appellate jurisdiction] - was dismissed. Petition is decided without necessity of notice since issue under adjudication is purely legal.

2. Facts essential for adjudication are that petitioner claimed purchase of suit property [property] from respondent No.1 - Awais Hussain - and transaction was recorded through registered sale deed No.12909 dated 12.12.2013. Awais Hussain [Awais] had purchased property from his father through a registered sale deed No.3915 dated 10.04.2006. Awais's sister – Zareena Begum - brought action for partition and during pendency of said suit – [which was dismissed for non-production of evidence] - another suit was filed seeking

declaration and cancellation of sale deed of Awais, along claim of possession and partition. Suit was contested by Awais on merits; wherein preliminary decree was passed on 13.02.2013 with direction for internal partition. Awais preferred appeal and same was dismissed on 30.03.2021. Thereafter, Awais preferred Civil Revision and same was withdrawn on 18.12.2024 on the premise of compromise. Petitioner claimed knowledge of judgments on 14.05.2025 and filed application under section 12(2) of the Code on 04.06.2025. Application was dismissed, hence, this Civil Revision.

3. Learned counsel when confronted that why application under section 12(2) of the Code was filed with appellate court, which dismissed appeal of Awais vide judgment dated 30.03.2021, which proceedings were contested, and not against the order of withdrawal of Civil Revision bearing C.R No.33059/2021 – [withdrawn on 18.12.2024]. Primarily, reference is made to ratio settled in the case of “Sahabzadi MAHARUNISA and another Vs. Mst. Ghulam Sughran and another” (PLD 2016 Supreme Court 358). Learned counsel emphasized that notwithstanding withdrawal of Civil Revision application is maintainable before the appellate court.

4. On merits, learned counsel is asked to explain how *pendente lite* purchase could be validated – undisputedly, purchase of the property by the petitioner was during pendency of proceedings of appeal against preliminary decree of the trial court. He explained that collusive suit is an exception to the principle of *lis pendens* and exclusion prescribed in terms of section 52 of the Transfer of Property Act 1882 is attracted. In support following judgments are cited;

“Messrs Mobiserve Pakistan (Pvt.) Limited V. Messrs V-Tech and others” (2025 SCMR 1936), “Muhammad Aslam (deceased) through L.Rs. and another V. Molvi Muhammad Ishaq (deceased) through L.Rs. and another” (2024 SCMR 1390), Bashir Ahmed Badini, D&SJ, Dera Allah Yar and others V. Hon’ble Chairman and Member of Administration Committee and Promotion Committee of Hon’ble High Court of Balochistan and others (2022 SCMR 448), Muhammad Aslam (deceased) through L.Rs and others V. Molvi Muhammad Ishaq (deceased) through L.Rs. (2012 SCMR 147), Muhammad Aslam and others V. Mst. Kundan Mai and others (2004 SCMR 843), Secretary, Ministry of Religious Affairs and Minorities and 2 others V. Syed Abdul Majid (1993 SCMR 1171), Khawaja Muhammad Yousaf V. Federal Government through Secretary, Ministry of Kashmir Affairs and Northern Areas and others (1999 SCMR 1516), Province of Punjab through Collector, Sialkot V. Muhammad Irshad Bajwa (1999 SCMR 1555), Lahore Development Authority V. Firdous Steel Mills (Pvt.) Ltd. (2010 SCMR 1097), Sahabzadi MAHARUNISA and another V. Mst. Ghulam Sughran and another (PLD 2016 Supreme Court 358), Muhammad Akram Malik V. Dr. Ghulam Rabbani and others (PLD 2006 Supreme Court 773), Fazal Karim through legal heirs and others V. Muhammad Afzal through legal heirs and others (PLD 2003 Supreme Court 818), Abdur Razzak Howladar V. Sh. Muhammad Shafi (PLD 1962 Supreme Court 134), Mst. Misbah Iftikhar and another V. Mst. Aleesa and 3 others (PLD 2025 Lahore 249), Ghulam Fareed V. Muhammad Bilal and others (PLD 2025 Lahore 575), Haleema Shuja V. Mst. Syeda Mehmooda Begum (Deceased) through L.R and others (PLD 2021 Lahore 533), Zahid Iqbal V. Additional District Judge, Lahore and others (2023 CLC 1399), Muhammad Yousaf V. Mst Bashiran Bibi (deceased) through legal heirs, and others (2024 YLR 2491), Allah Ditta and others V. Muhammad Anwar and others (2022 YLR 336) and “Mian Imran Saeed, etc. Vs. Mst. Salima Bibi, etc.” (2022 CLC 349).

5. Heard. Notwithstanding the fact that petitioner choose to question legality of contested / on-merits decision, determination of

forum for adjudication of application under section 12(2) of the Code is essential – determination requires appreciation of the ratio settled in the case of Sahabzadi MAHARUNISA and others (supra), operative part whereof is reproduced hereunder:-

“8. In order to sum up the discussion on the subject, we find that the following are the situations (with certain exceptions) which would be relevant to the determination of the **final court** within the purview of Section 12(2) of the C.P.C:-

- (i)
- (ii) **Where an appeal/revision/writ is not disposed of on merits but on some other grounds;**
- (iii)
- (vi).....

9. With respect to these four situations, our conclusion is as under:-

- (i).....
- (ii). In the situation mentioned at serial No.(ii) above, there are certain exceptions to the rule of merger which (rule) shall not apply, where an appeal etc. has been dismissed:- (i) for non-prosecution; (ii) for lack of jurisdiction; (iii) for lack of competence/maintainability; (iv) as barred by law; (v) as barred by time; (vi) **withdrawal of the matter by the party**; (vii) for lack of locus standi; **(viii) decided on the basis of a compromise, if the very basis of the compromise by the party to the lis or even a stranger showing prejudice to his rights is not under challenge on the ground of fraud**; (ix) is rendered infructuous or disposed of as having borne fruit; (x) abatement; (xi) where the writ is dismissed on the ground of availability of alternate remedy; (xii) where the writ is dismissed on the point of laches. It may be mentioned that such exceptions shall also be attracted to the decision(s) of the Supreme Court, where applicable. **However where the case falls within the noted exceptions the forum for an application under Section 12(2) of the C.P.C. is the one against whose decision the matter has come and been disposed of in the above manner by the higher forum;**
- iii)
- iv)

[Emphasis supplied]

6. Scenario discussed in clause (ii) at paragraph 8 is relevant. Learned counsel emphasized that in wake of falling of case/facts in exception, highlighted in clause (vi) at paragraph 9, application under section 12(2) of the Code has had to be filed at the forum against whose decision matter has come to the higher forum and disposed of in terms of one of the exceptions provided – context being clause (vi) at paragraph 9.

7. I am afraid that submissions made do not reflect true and proper reading of the ratio, in the context of facts of the case at hand. At the expense of repetition, Application under section 12(2) of the Code was filed against decree of appellate court, where case was decided on merits. Conversely, Civil Revision was withdrawn on the basis of compromise between brother and sister with respect to the property, claimed to have had purchased by the petitioner from Awais. How collusiveness could be attributable to proceedings decided on merits [which is the judgment of dismissal of appeal by the appellate court]. Before discussion that whether any collusion was there, it is appropriate to understand the context, which is that *pendente lite* purchaser, which is subject to the principle elucidated in section 52 of the Transfer of Property Act 1882, is seeking re-adjudication of the matter, already decided on merits. There is no cavil that allegation of collusion is an exception to disconnect petitioner from the effect of swim and sink principle. Collusion, at best, could be alleged against order-cum-effect of withdrawal of civil revision. In these circumstances, ratio of Sahabzadi MAHARUNISA and others (supra) does not envisage filing of application before the forum against whose

decision matter has come to the higher forum and same was disposed of by way of withdrawal. Referred case needs sharper focus. Paragraph 9 of Sahabzadi MAHARUNISA and others (supra) highlights a scenario at clause (viii), wherein situation encountered was further qualified with a caveat / additional exception. Clause (viii) reads as, “decided on the basis of a compromise, if the very basis of the compromise by the party to the lis or even a stranger showing prejudice to his rights is not under challenge on the ground of fraud’.

There is no plausible reason not to read the qualification in clause (viii) at paragraph 9 while contemplating situation envisaged through clause (vi) at paragraph 9, thereof, in cases where withdrawal was effected on basis of compromise. There is no cavil that for bringing case within the ambit of an added qualification / exception within the series of exemptions, discussed at paragraph 9 of the judgment, applicant must claim prejudice to the rights on the ground of fraud, and not otherwise. Since, petitioner elected to contest decree on merits and not an order of compromise this implies conspicuous absence of claim of prejudice on the ground of fraud. This abandonment is opted and therefore, no prejudice is attributable to the court. Hence, petitioner’s case does not fall within an exception to the exceptions discussed – no grievance was alleged against order of withdrawal of civil revision.

8. Now I take up the argument regarding allegation of collusion / fraud, in the context of section 52 of the Transfer of Property Act 1882. Allegation of collusion has to be understood in the context of proceedings. Petitioner’s position is that his case falls within an

exception to the principle of *lis pendens*, since collusion is alleged against litigation between sister and brother, Awais, from whom petitioner purchased property.

Argument is fallacious. Sister initiated proceedings on 19.10.2007 against brother's claim of purchase of property from his father and preliminary decree was passed on 13.02.2013, whereafter appeal was filed and petitioner purchased property on 12.12.2013 – *pendente lite proceedings of appeal*. In these circumstances, no collusion could be attributed to the proceedings, which had commenced before the purchase of property by the petitioner. I am afraid that exception provided under section 52 of the Transfer of Property Act, 1882 is not available. Learned counsel stressed on ratio of decisions in cases of Allah Ditta and others (supra) and "Mian Imran Saeed (supra). In case of Allah Ditta and others (supra) learned Single Judge in Chambers reiterated principle of *lis pendens* and facts therein are distinguishable in the context of premise of collusion and character and timing of proceedings – in case at hand proceedings commenced before purchase of property by the petitioner, therefore principle of *lis pendens* is attracted, unconditionally. And in case of "Mian Imran Saeed (supra) reference was made to the case of MUHAMMAD ASHRAF BHATTI and others v. MUHAMMAD ASIF BHATTI and others (PLD 2011 Supreme Court 905), wherein exceptions of *lis pendens* were elaborated. Though reference to the case of "Mian Imran Saeed (supra) is made by learned counsel but without establishing that how petitioner's case falls in the exception of section 52 of the Transfer of Property Act 1882 – argument is already

discussed in preceding paragraph(s). Other judgments referred have had no relevance or applicability in the context of facts encountered.

I have examined the judgment of the appellate court and impugned order and do not find any illegality wherein court had fairly and properly enforced the principle of *lis pendens*.

9. Civil Revision is devoid of merits and same is, hereby, dismissed.

(Asim Hafeez)
Judge

Approved for reporting.

Judge

M. Nadeem/